

New cemetery owners to honor burial contracts, reimburse customers

BLOUNTVILLE, TN (WJHL) – The new owners of a Blountville cemetery are now making a commitment to help the [grieving families](#) who were hassled by an ongoing dispute there.



“East Tennessee Cemetery is committing to provide the merchandise and services that Tri-Cities Memory Gardens is refusing to perform even though Tri-Cities was paid in full to provide these items,” Eugene Allison said. “East Tennessee Cemetery is committing to this in order to show its willingness to serve the community and these families. All of our staff and management are local folks, and we are happy to have these persons serving the local communities.”

The change of heart comes after the Tennessee Department of Commerce and Insurance alerted the cemetery [last week](#) that it was responsible for all past contracts there. The cemetery, formerly Tri-Cities Memory Gardens, changed ownership recently after financial problems led to foreclosure.

Allison has maintained all along that they should not be held responsible for the financial troubles of the previous owner Jeff Gasperson. That said, he offered to [settle](#) with the state last week. The state was still considering that settlement when the new owners made a new commitment to all of the families who suffered and to the thousands of concerned others who have pre-need contracts

“Even though Jeff Gasperson was not willing to take responsibility for that, we are and we will honor all outstanding contracts,” East Tennessee Cemetery Manager David Hale said. “We’re willing to take that responsibility of someone else’s debts and someone else’s irresponsibility to move on. That’s the stand we’re willing to make for the community and the families.”

Not only that, Hale said when the new owners take control of what they believe is an underfunded merchandise and services trust, people who’ve had to pay twice for burial services will receive refunds.

“Are you going to be able to make things right for all of these people?” we asked. “Yes,” Hale said. “All of them?” we asked. “Yes.”

It took some time and arm twisting to get this point, but Hale says he understands where customers are coming from.

“I would have felt the same way,” he said. “We want to take care of the people. I hope they realize who’s the bigger person.”

Allen Bittinger buried his 92 year-old mother in February. The change of ownership at the cemetery made the timing of her death even worse for his family. Decades ago, the Bittingers bought pre-need contracts at Tri-cities Memory Gardens, but when Vivian Bittinger died on February 16th, the new owners of the cemetery would not honor that pre-existing contract. Not only did they charge the family again for something they already paid for, contracts reveal they charged them significantly more.

“We came out here and they wouldn’t even bury here,” Bittinger said. “We had to pay more money. It wasn’t right. When I came here I had to pay for the opening and closing and extra, because it was on a Saturday. It was bad enough for my brother and I to lose our mother and then for this to happen, it was just devastating.”

Hale says it was the decision of the new owners to charge market value for the services last month, even though Bittinger requested a discount, because of the circumstances. Regardless, Bittinger welcomes the news that his family will now be reimbursed. He just wishes the new owners would have acted sooner and hopes they now live up to their promise.

“I think if he does what he’s saying I will be happy,” Bittinger said. “I’m concerned though that he won’t.”

Allison says he invites anyone with questions about this issue to contact Hale at (423) 323-3838.

As for the state’s involvement with the cemetery, Tennessee Department of Commerce and Insurance Kevin Walters offered these comments to the public Monday afternoon:

- The Tennessee Department of Commerce and Insurance (TDCI) takes its responsibility seriously when it comes to protecting consumers and regulating cemeteries and funeral homes across Tennessee. We sympathize with families who might be confused or upset regarding the situation at East Tennessee Cemetery (formerly Tri-Cities Memory Gardens, Inc.).
- State law makes it clear that burial plots or cemetery merchandise and services purchased under the cemetery's previous ownership must be honored by East Tennessee Cemetery's new owners.
- Going forward, TDCI will strive to continue to keep consumers informed about this situation in a timely manner.
- Consumers should keep all paperwork /contracts that were made with Tri-Cities Memory Gardens, Inc.
- If you are told by East Tennessee Cemetery that you must purchase items again or make additional unexpected costs, inquire thoroughly and consider talking with a private attorney regarding your options.
- Should you have experienced the death of a loved one and the cemetery company has failed to furnish the merchandise and services as paid for in a contract, please contact the Burial Services Section of the Tennessee Department of Commerce and Insurance at (615) 741-5062.